

MEMORANDUM FOR FILE

FROM: [REDACTED]
CODE: 633
TO: Code 02
DATE: 4/27/2026
SUBJECT: Non-Competitive Procurement Justification Memo for Actions Under SAT

I. BACKGROUND

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available.
2. FAR 8.405-6 allows for limiting sources for orders or BPAs under Federal Supply Schedules under certain circumstances or for items peculiar to one manufacturer
3. As required by FAR 13.106-3(b)(3)(i), FAR 8.405-6(a)(1), or FAR 8.405-6(b)(2), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE (Include manufacture/sole source name and address.)

Procurement of six (6) level sensors and six (6) pressure sensors to replace the current faltering sensors installed in 6 tanks of the automated Liquid Waste Feed System (LWFS) in the Code 633 non-oily wastewater laboratory. The current and replacement sensors are Endress + Hauser brand name equipment. Delivery date is 15 working days after receipt of order.

Manufacturer: Endress + Hauser AG

Authorized Sales Representative: c/o Eastern Controls, Inc.

**Address: 2350 Endress Place
Greenwood, IN 46143**

Phone: 610-325-4600

POC: Ben Peck, ben.peck@easterncontrols.com

III. BASIS FOR DETERMINATION FOR USE OF OTHER THAN FULL & OPEN COMPETITION

☐ **A. BRAND NAME.** The item required must be a brand name product, or feature of a product, particular to one manufacturer.

☐ **1. Restrictive Rights.** The source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service required.

☐ **2. Exclusive Licensing Agreements.** The item or service is only available from the Original Equipment Manufacturer (OEM).

☐ **3. Federal Supply Schedule (FSS) IAW FAR 8.405-6(b).**

☐ **4. Other Reasons.**

☒ **B. SOLE SOURCE.** (select all that apply)

☒ **1. Restrictive Rights.** The source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service required.

Code 633 needs to replace/update faltering level sensors and pressure sensors installed on 6 tanks of the automated Liquid Waste Feed System (LWFS) in the non-oily wastewater laboratory. The current LWFS component sensors are Endress + Hauser brand models. This procurement is for updated models of the same brand sensors to ensure that the current LWFS functionality and operability is maintained.

☒ **2. Exclusive Licensing Agreements.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

Eastern Controls, Inc. is the only regional authorized distributor for Maryland.

☒ **3. Other Reasons.**

This procurement is for updated models of the Endress + Hauser sensors to ensure that the current LWFS functionality and operability is maintained. Without a properly functioning automated LWFS in the Non-Oily Wastewater Laboratory, continued success of laboratory evaluations – the mission tasked by NAVSEA 05P5/F – cannot be ensured.

Eastern Controls, Inc. is the only authorized distributor of Endress + Hauser products in the area that Naval Surface Warfare Center Carderock sits in, thus being the only possible brand name and source for these sensor products.

☐ **4. Federal Supply Schedules (FSS): IAW FAR 8.405-6(a)(1)**

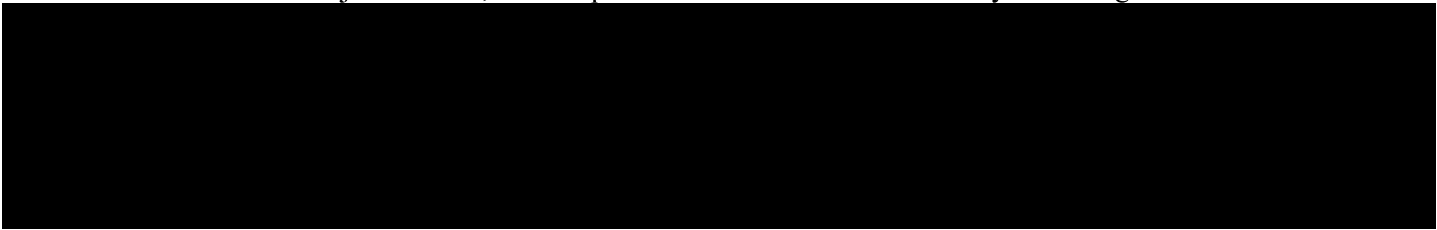
☐ a. An urgent and compelling need exists, and following the procedures would result in unacceptable delays;

☐ b. Only one source is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized; or

☐ c. In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule order provided that the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order or BPA must not have been previously issued under sole-source or limited-sources procedures.

IV. CERTIFICATIONS & APPROVALS

A. Technical/Requirements Certification: I certify that the facts and representation under my cognizance, which are included in this justification, are complete and accurate to the best of my knowledge and belief.



B. Certification/Approval: Upon the basis of the above justification and authority, I hereby approve the solicitation of the proposed procurement(s) described herein from a sole source or limited sources,.

MCDONALD- JOHNSON.SYDNEY.MELVINA.1408165845	Digitally signed by MCDONALD- JOHNSON.SYDNEY.MELVINA.1408165845 Date: 2026.04.29 08:33:10 -04'00'
Contracting Officer Signature	Name / Title / Phone
	Date